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Attorneys for Plaintiff: Midland Credit Management, Inc

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Superior Court of California,
County of Los Angeles
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David W. Slayton,
Executive Officer/Clerk of Court,
By E. Flores, Deputy Clerk

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF LOS ANGELES - LIMITED**

Midland Credit Management, Inc,
Plaintiff,

vs.

EVAN NINO MAPOY, an individual;

and DOES 1 through 10 inclusive.
Defendant.

Case No.
24CHLC00282
COMPLAINT FOR:

1. ACCOUNT STATED
2. OPEN BOOK ACCOUNT

DEMAND: \$3,115.47

Plaintiff alleges:

FACTS COMMON TO ALL CAUSES OF ACTION

1.Plaintiff is and at all times herein mentioned, Midland Credit Management, Inc, and successor in interest to original creditor, CITIBANK, N.A..

2.Plaintiff is the only entity that purchased the debt after charge-off and its name and address is as follows: Midland Credit Management, Inc 350 Camino De La Reina Suite 100 San Diego CA 92108.

3.Plaintiff is a debt buyer, and is the sole owner of the debt at issue. Plaintiff's California Debt Collector license application is currently pending.

4.The charge-off creditor at the time of charge-off is CITIBANK, N.A., 5800 SOUTH CORPORATE PLACE SIOUX FALLS, SD 57108, and the account number associated with this debt is XXXXXXXXXXXX7350.

1 5.Plaintiff is informed and believes that Defendant are individuals who currently reside
2 within the jurisdictional boundaries of the above entitled Court. Therefore, this Court is the proper
3 Court for trial of this action.

4 6.The name and last known address of the debtor as they appeared in the charge-off
5 creditor's records prior to the sale of the debt is EVAN NINO MAPOY, 19713 LULL ST ,
6 WINNETKA, CA 91306.

7 7.Plaintiff is unaware of the true names or capacities, whether individual, corporate,
8 associate or otherwise of the Defendant sued herein as DOES 1 through 10 inclusive, and therefore,
9 sued the Defendant by such fictitious names. Plaintiff will amend this Complaint to show their true
10 names and capacities once ascertained.

11 8.Plaintiff believes and at all times mentioned herein, each of the Defendant was, and is,
12 the agent, servant and employee, employer of each of the other Defendant, and also acted in the
13 capacity of and as agent of the other Defendant. Plaintiff also believes that the individual
14 Defendant, and each of them, are jointly and severally liable that the actions described herein
15 were taken as actions for the benefit of the Defendant's separate and/or community property.

16 9.Plaintiff believes that, for value received, Defendant and each of them, executed and
17 delivered a credit card application to the original creditor, CITIBANK, N.A. or made such
18 application over the telephone or Internet. Pursuant to the aforementioned application,
19 CITIBANK, N.A. provided Defendant with a credit account, and granted use privileges on the
20 same, account number XXXXXXXXXXXXX7350 (hereinafter "Account").

21 10.Prior to the commencement of this action, the Account was assigned for value to the
22 Plaintiff and Plaintiff is its current holder.

23 11.Defendant agreed to repay CITIBANK, N.A. and any successors in interest, for any
24 charges on the Account including, but not limited to, charges for purchase of goods and service
25 and/or cash advances and balance.

26 12.Defendant used the Account to make purchases and/or to take cash advances and/or to
27 make balance transfers. Each time the Defendant used the Account to purchase goods and services
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1 and/or take cash advances and/or make balance transfers, Defendant reaffirmed their agreement to
2 repay CITIBANK, N.A. and its successors in interest for the amount of the purchase and/or cash
3 advances and/or balance transfers.

4 13.Monthly statements were sent to Defendant which itemized all payments made and
5 charges due on the Account.

6 14.The date of last payment on the subject account was on July 25, 2022.

7 15.Within the last four years, the Defendant failed to make payments as agreed on the
8 Account. Defendant has failed, refused and neglected to pay amounts due on the Account.

9 16.The debt balance at charge-off was \$3,115.47, and upon information and belief there is
10 \$0.00 in post charge off fees and \$0.00 in post charge off interest.

11 17.Subsequent to charge-off, and after applying any and all applicable payments and
12 credits, the Defendant owes Plaintiff \$3,115.47.

13 18.Although demand has been made upon said Defendant to pay said amount, no part has
14 been paid, and it is now due and owing.

15 19.Upon information and belief, CITIBANK, N.A. and successors in interest including
16 Plaintiff have duly performed all promises, conditions and agreements herein.

17 20.Plaintiff has complied with California Civil Code Section 1788.52.

18 21.Plaintiff has attached hereto as Exhibit A and incorporated herein by reference a copy
19 of Billing Statement provided to the Defendant while the account was active, demonstrating that
20 the debt was incurred by the Defendant.

21 22.Plaintiff has attached hereto as Exhibit B and incorporated herein by reference a copy
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1 of the Final Billing Statement and/or Transaction History.

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3 **FIRST CAUSE OF ACTION**

4 **(Account Stated)**

5 23.Plaintiff refers to and incorporates paragraphs 1 through 22.

6 24.Within the past 4 years, an account was stated in writing in which it was agreed that
7 Defendant were indebted in the amount previously referenced herein. Although demand has been
8 made upon Defendant, said amount of \$3,115.47 has not been paid, and it is now due, owing and
9 unpaid from Defendant to Plaintiff, as successor in interest.
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12 **SECOND CAUSE OF ACTION**

13 **(Open Book Account)**

14 25.Plaintiff refers to and incorporates paragraphs 1 through 24.

15 26.Within the past 4 years, Defendant and each of them became indebted in the amount of
16 the previously mentioned herein for a balance due on a book account for goods sold and delivered
17 and/or services rendered by CITIBANK, N.A.. Although demand has been made upon Defendant,
18 said amount of \$3,115.47 has not been paid, and it is now due, owing and unpaid from Defendant
19 to Plaintiff as successor in interest.
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2 WHEREFORE, Plaintiff prays for judgment against the Defendant as follows:

- 3
4 1. For the damages and money in the sum of \$3,115.47,
5 2. For costs of suit incurred; and
6 3. For such other and further relief as the Court deems just and proper.
7
8 4. Plaintiff remits all damages in excess of the jurisdictional amount of this Court.

9
10 Dated: 12/24/2023

By: **MANDARICH LAW GROUP, LLP**

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12 

13 [X] Teona Pipia, Esq.
14 *Attorneys for Plaintiff*
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EXHIBIT A

EVAN NINO MAPOY

Member Since 2021 Account number ending in: 7350

Billing Period: 07/13/22-08/10/22

www.citicards.com

Customer Service 1-800-388-2200

TTY: 711

BOX 6500 SIOUX FALLS, SD 57117

AUGUST STATEMENT

Minimum payment due:	\$1,580.36
New balance as of 08/10/22:	\$2,613.54
Payment due date:	09/08/22

See the last page of this statement for important information about how to avoid paying interest on purchases.

Late Payment Warning: If we do not receive your minimum payment by the date listed above, you may have to pay a late fee of up to \$40 and your APRs may be increased up to the Penalty APR of 29.99%.

Minimum Payment Warning: If you make only the minimum payment each period, you will pay more in interest and it will take you longer to pay off your balance. For example:

If you make no additional charges using this card and each month you pay...	You will pay off the balance shown on this statement in about...	And you will end up paying an estimated total of...
Only the minimum payment	4 year(s)	\$3,413

For information about credit counseling services, call 1-877-337-8188.

Your account is past due \$145.62 and over the credit limit by \$1313.54. Please pay at least the Minimum Payment Due, which includes a past due amount and an Overlimit Amount.

Account Summary

Previous balance	\$2,538.34
Payments	-\$20.00
Credits	-\$0.00
Purchases	+\$0.00
Cash advances	+\$0.00
Fees	+\$40.00
Interest	+\$55.20

New balance \$2,613.54

Credit Limit

Revolving Credit limit	\$1,300
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Includes \$400 cash advance limit

For Payments, send check to: CITI CARDS, PO BOX 78045, Phoenix, AZ, 85062-8045

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To download:
Text 'App15' to MyCiti (692484)
or go to your device's app store.
Or visit www.citicards.com

Minimum payment due	\$1,580.36
New balance	\$2,613.54
Payment due date	09/08/22

Amount enclosed:

Account number ending in 7350
Please make check payable to CITI CARDS.

000000 PW 32 A 0

EVAN NINO MAPOY
19713 LULL ST
WINNETKA CA 91306-2676

CITI CARDS
PO BOX 78045
Phoenix, AZ 85062-8045

EVAN NINO MAPOY

TTY:711

Account Summary

Trans. date	Post date	Description	Amount
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Payments, Credits and Adjustments

07/24	ONLINE PAYMENT, THANK YOU	-\$20.00
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Fees charged

Date	Description	Amount
08/10	LATE FEE - JUL PAYMENT PAST DUE	\$40.00

Total fees charged in this billing period	\$40.00
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Interest charged

Date	Description	Amount
08/10	INTEREST CHARGED TO STANDARD PURCH	\$55.20

Total interest charged in this billing period	\$55.20
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2022 totals year-to-date

Total fees charged in 2022	\$108.00
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Total interest charged in 2022	\$177.93
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Interest charge calculation

Days in billing cycle: 29

Your **Annual Percentage Rate (APR)** is the annual interest rate on your account.

Balance type	Annual percentage rate (APR)	Balance subject to interest rate	Interest charge
PURCHASES			
Standard Purch	27.24% (V)	\$2,550.74 (D)	\$55.20
ADVANCES			
Standard Adv	27.49% (V)	\$0.00 (D)	\$0.00

Your Annual Percentage Rate (APR) is the annual interest rate on your account. APRs followed by (V) may vary. Balances followed by (D) are determined by the daily balance method (including current transactions).

Account messages

For any customer who believes they may be a victim of Identity theft, we encourage you to visit the Federal Trade Commission (FTC) website <http://www.IdentifyTheft.gov>, which provides victims of identity theft with resources to help guide you through the recovery process. For questions about FTC Identity Theft recovery solutions, please contact 1-877-438-4338 or 1-866-653-4261 (TTY). Due to redundancies with the FTC process, Citi will be discontinuing the Citi Identify Theft Solutions service effective January 15 2023. As a reminder, If you have a concern about suspected fraud on your Citi credit card or your Citi bank account, please contact us at the number on the back of your credit or debit card.

Your account is past due \$145.62 and over the credit limit by \$1313.54. Please pay at least the Minimum Payment Due, which includes a past due amount and an Overlimit Amount. If you have already sent us this payment, thank you.

Please be sure to pay on time. If you submit your payment by mail, we suggest you mail it no later than 09/01/2022 to allow enough time for regular mail to reach us.

EVAN NINO MAPOY

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EXHIBIT B

EVAN NINO MAPOY

Member Since 2021 Account number ending in: 7350

Billing Period: 12/13/22-01/11/23

www.citicards.com

Customer Service 1-800-925-8871

TTY: 711

BOX 6500 SIOUX FALLS, SD 57117

JANUARY STATEMENT

Minimum payment due:	\$3,115.47
New balance as of 01/11/23:	\$3,115.47
Payment due date:	01/11/23

See the last page of this statement for important information about how to avoid paying interest on purchases.

Late Payment Warning: If we do not receive your minimum payment by the date listed above, you may have to pay a late fee of up to \$40 and your APRs may be increased up to the Penalty APR of 29.99%.

Minimum Payment Warning: If you make only the minimum payment each period, you will pay more in interest and it will take you longer to pay off your balance. For example:

If you make no additional charges using this card and each month you pay...	You will pay off the balance shown on this statement in about...	And you will end up paying an estimated total of...
Only the minimum payment	1 month(s)	\$3,115

For information about credit counseling services, call 1-877-337-8188.

Account Summary

Previous balance	\$3,041.56
Payments	-\$0.00
Credits	-\$0.00
Purchases	+\$0.00
Cash advances	+\$0.00
Fees	+\$0.00
Interest	+\$73.91

New balance **\$3,115.47****Credit Limit**Revolving Credit limit **\$1,300**

Includes \$400 cash advance limit

For Payments, send check to: CITI CARDS, PO BOX 78045, Phoenix, AZ, 85062-8045

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To download:
Text 'App15' to MyCiti (692484)
or go to your device's app store.
Or visit www.citicards.com

Minimum payment due	\$3,115.47
New balance	\$3,115.47
Payment due date	01/11/23

Amount enclosed:

Account number ending in 7350

Please make check payable to CITI CARDS.

000000 PW 32 A 0

EVAN NINO MAPOY
19713 LULL ST
WINNETKA CA 91306-2676

CITI CARDS
PO BOX 78045
Phoenix, AZ 85062-8045

EVAN NINO MAPOY

Account Summary

Trans. date	Post date	Description	Amount
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Fees charged

Total fees charged in this billing period	\$0.00
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Interest charged

Date	Description	Amount
01/11	INTEREST CHARGED TO STANDARD PURCH	\$73.91
Total interest charged in this billing period		\$73.91

2023 totals year-to-date	
Total fees charged in 2023	\$0.00
Total interest charged in 2023	\$73.91

Interest charge calculation			Days in billing cycle: 30
Your Annual Percentage Rate (APR) is the annual interest rate on your account.			
Balance type	Annual percentage rate (APR)	Balance subject to interest rate	Interest charge
PURCHASES			
Standard Purch	29.24% (V)	\$3,075.35 (D)	\$73.91
ADVANCES			
Standard Adv	29.49% (V)	\$0.00 (D)	\$0.00

Your Annual Percentage Rate (APR) is the annual interest rate on your account. APRs followed by (V) may vary. Balances followed by (D) are determined by the daily balance method (including current transactions).

Account messages

Please note that if we received your pay by phone or online payment between 5 p.m. ET and midnight ET on the last day of your billing period, your payment was credited as of the date of receipt, but will not be reflected until your next statement.

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